

# Telangana Police (Selection and Appointment of Director General of Police (Head of Police Force)) Act, 2018

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State of Telangana - Act

Telangana Police (Selection and Appointment of Director General of Police (Head of Police Force)) Act, 2018

TELENGANA

India

Telangana Police (Selection and Appointment of Director General of Police (Head of Police Force)) Act, 2018

Act 9 of 2018

Published on 30 March 2018

Commenced on 30 March 2018

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Telangana Police (Selection and Appointment of Director General of Police (Head of Police Force)) Act, 2018

(Act

No. 9 of 2018

)

[Dated 30th March, 2018]

Received the assent of the Governor on the 29th March, 2018.

An Act to provide for selection and appointment of director general of Police (head of police force) and for matters connected therewith or incidental thereto.

Be it enacted by the Legislature of the State of Telangana in the Sixty-ninth Year of the Republic of India as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the Telangana Police (Selection and Appointment of Director General of Police (Head of Police Force)) Act, 2018.

(2)

It extends to the whole of the State of Telangana.

(3)

It shall come into force with effect from the date of publication of the Act in the Telangana Gazette.

2.

Definitions.

(1)

In this Act, unless the context otherwise requires,-

(a)

"Government" means the State Government;

(b)

"Police Officer" means any member of the Telangana Police and includes an Indian Police Service (IPS) Officer working in connection with the affairs of the State and the Telangana Police;

(c)

"State" means the State of Telangana.

(2)

Words and expressions used in this Act, but not defined specifically, shall have the same meaning as provided in the Code of Criminal Procedure, 1973, (Central Act No.2 of 1974) and the Indian Penal Code, 1860, (Central Act No.45 of 1860).

3.

Selection, appointment of the Director General of Police (Head of Police Force) and tenure.

(1)

The Director General of Police (Head of Police Force) shall be selected and appointed by the State Government from amongst the officers of the Indian Police Service in the rank of Director General of Police on the basis of their length of service, very good history of service, professional knowledge and ability to lead Police Force in the State.

(2)

The Director General of Police (Head of Police Force) appointed under sub-section (1) shall have a minimum tenure of two years, subject to retirement in accordance with the rules made under the All India Services Act, 1951, (Central Act No.61 of 1951).

(3)

The Director General of Police (Head of Police Force) may be relieved of his/her responsibilities under the following circumstances, namely,-

(a)

on conviction by a court of law in a criminal offence or in a case of corruption;

(b)

on punishment of dismissal, removal or compulsory retirement from service or of reduction to a lower post awarded under the provisions of the All India Services (Discipline and Appeal) Rules or any other relevant rules for the time being in force;

(c)

on incapacitation by physical or mental illness or otherwise becoming unable to discharge his/ her functions;

(d)

on appointment to any other post either under the State Government or Central Government, with his/ her consent for such posting;

(e)

on any other administrative grounds.

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